STANDARD OPERATING PROCEDURE			G-6250
SARPY COUNTY SHERIFF'S OFFICE PAPILLION * NEBRASKA GREG LONDON SHERIFF	DATE ISSUED 12/04/06	DATE REVISED **10/24/24**	DATE REVIEWED 02/02/25
	APPROVED: *GREG LONDON*		
CHAPTER TITLE GENERAL	RESOURCES		
SUBJECT AEROSOL SUBJECT RESTRAINT	CROSS REFERENCE G-6100 USE OF FORCE G-6110 USE OF FORCE REPORTING REQUIREMENTS		

I. Purpose:

The purpose of this policy is to establish the guidelines for carry and use of aerosol subject restraints.

II. Policy:

Employees of the Sarpy County Sheriff's Office shall use aerosol subject restraints only in accordance with established use of force policies and procedures (see G-6100 Use of Force). Only those aerosol subject restraints approved by the Sheriff shall be utilized. The Training Sergeant shall maintain a listing of approved aerosol subject restraints.

III. Definitions:

A. AEROSOL SUBJECT RESTRAINT: For purposes of this policy, aerosol subject restraint shall be Presidia Gel CS Spray, authorized by the Sheriff for the purpose of controlling a subject's behavior.

IV. Procedures:

A. Training: Only trained and certified employees shall carry or utilize an aerosol subject restraint.

1. Employees shall utilize aerosol subject restraints as instructed.

B. Carry Requirements: When on duty and in uniform (with the exception of those deputies working inside of the jail or LEC), deputies shall carry an aerosol subject restraint on their duty belt.

C. Aerosol Subject Restraint Use: Aerosol subject restraints shall be used in accordance with all Sheriff's Office training standards, policies and procedures.

Aerosol subject restraints shall only be used when justified according to the use of force policy (see G-6100 Use of Force).

1. When tactically feasible, verbal commands shall be given prior to, during and after the use of an aerosol subject restraint.

2. Aerosol subject restraints shall not be carried or used inside the jail without approval from a jail supervisor or command officer.

3. Aerosol subject restraints are authorized in the following situations:

a) When an employee has given verbal commands for an active aggressive subject to stop his or her violent criminal behavior and the suspect refuses.

b) When an active aggressive subject refuses to obey the lawful order of an employee and that subject, through word or deed, indicates to the employee that a physical confrontation will be necessary for the employee to obtain compliance on the part of the subject.

c) To stop the active aggression of a subject when that aggression is directed at an employee or others.

d) To deter a vicious or aggressive animal that threatens the safety of an employee or others.

4. Aerosol subject restraints should not be used under the following circumstances:

a) Where innocent third parties would likely be affected.

b) In high winds.

c) When the subject is passively resistant (e.g. a protestor who is dead weight).

D. Post Deployment:

1. Any employee using an aerosol subject restraint shall immediately notify his or her supervisor. The supervisor shall respond to the scene.

2. The supervisor shall notify the on-duty watch commander or ADC.

3. The on-scene supervisor shall photograph the subject and any secondary injuries resulting from the use of the aerosol subject restraint.

4. Medical Attention: After the use of an aerosol subject restraint, the subject shall be administered any necessary first aid, after being secured.

a) Decontamination shall take place as soon as possible by use of Reflex Remove fluid decontaminant. Decontaminant shall be poured over their forehead and into the eye orbital area. The suspect shall be told to open their eyes. A whole bottle can be used, in 3-4 separate pours. The suspect shall be told to keep their mouth closed. The decontaminant is foul tasting, but non-toxic. The suspect can spit it at you, so care should be taken to stand to the side of the suspect when the decontaminant is applied. After decontaminant is applied 3-4 times, wait approximately five minutes to let it take effect. A cool wet cloth can be used to the remove the rest of the Presidia gel after 5-10 minutes.

b) Employees shall advise the subject that medical attention is available if desired.

c) The subject shall be transported to a medical facility if:

(1) The subject requests medical attention.
(2) The subject sustains an injury from a fall after being affected by an aerosol subject restraint.
(3) The subject appears to be having difficulty breathing.

5. This policy recognizes that during large crowd control/civil disturbances, it may not be possible to apprehend or treat all the subjects affected by aerosol subject restraints.

E. **Reporting:** With the exception of training, employees shall document all uses of aerosol subject restraints in accordance with Sheriff's Office use of force reporting requirements (see G-6110 Use of Force Reporting Requirements).

1. On all operational uses of an aerosol subject restraint, the Use of Force Report form shall include:

a) A brief description of the incident.
b) The number of times and duration the aerosol subject restraint was sprayed.
c) Approximate distance to subject.
d) A description of decontamination provided.
e) Medical treatment, if any, provided to the subject.
f) A description of the subject's actions after being sprayed with the aerosol subject restraint.

g) A description of any injuries sustained by the subject including secondary injuries that may have occurred.

2. If an aerosol subject restraint is used on an animal, the employee shall complete an information report containing all information required for a Use of Force Report form. All other evidence (e.g. photographs) shall be collected and submitted.